

24VECV01413 24VECV01413

County: los-angeles

Division: Civil Law and Motion

Department: O

Hearing date: 2026-06-23

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Case Number: 24VECV01413 Hearing Date: June 23, 2026 Dept: O

NOTE: There are two rulings below.

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

JACQUELINE SHERRARD, an individual,

Plaintiff,

vs.

ALEXANDER KLENSHTEYN, an individual; LYFT, INC., a Delaware Corporation; and DOES 1 to 25,

Defendant.

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CASE NO.: 24VECV01413

C/W: 24VECV02942

ORDER DENYING PLAINTIFF ALEXANDER KLENSHTEYN'S MOTION TO COMPEL FURTHER RESPONSES TO
SPECIAL INTERROGATORIES (SET TWO)

ALEXANDER KLENSHTEYN,

Plaintiff,

vs.

JACQUELINE SHERRARD; STARBUCKS CORPORATION, and DOES 2 to 25,

Defendants.

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I. BACKGROUND

Plaintiff Jacqueline Sherrard (“Sherrard”) filed a Complaint, Case No. 24VECV01413, alleging motor vehicle tort against Alexander Klenshteyn (“Klenshteyn”), and Lyft, Inc. (“Lead Case”). The Court consolidated the Lead Case with a separate action Klenshteyn filed against Sherrard and, later, Starbucks Corporation, Case No. 24VECV02942. On August 5, 2025, Sherrard dismissed her Complaint, leaving Klenshteyn’s action alleging one cause of action for motor vehicle tort against Sherrard and Starbucks Corporation (“Starbucks”).

Klenshteyn moves to compel Sherrard’s further responses to his Special Interrogatories (Set Two).

II. PROCEDURAL HISTORY

On March 28, 2024, Sherrard filed a Complaint alleging motor vehicle tort.

On June 20, 2024, Klenshteyn filed a Complaint alleging motor vehicle tort.

On September 11, 2024, Sherrard filed an Answer.

On July 2, 2025, Klenshteyn filed an Amendment to Complaint to designate Starbucks as Doe 1.

On August 5, 2025, Sherrard dismissed her Complaint.

On September 5, 2025, Starbucks filed an Answer.

On June 4, 2026, Klenshteyn filed the instant Motion to Compel Further.

On June 11, 2026, the Court advanced the hearing on the instant Motion to Compel Further Discovery Responses, originally scheduled for June 29, 2026, to this date and continued it to June 23, 2026. The Court ordered any opposition due on or before June 18, 2026.[1]

On June 15, 2026, Sherrard filed an Opposition.

Trial is scheduled for July 8, 2026.

III. LEGAL STANDARD

A. Interrogatories

A propounding party may move for an order compelling further responses to interrogatories if the responding party produced an evasive or incomplete answer or a meritless or overly general objection in response to an interrogatory. (See Code Civ. Proc. § 2030.300(a).) A motion to compel further responses to interrogatories lies where the party to whom the interrogatories were directed gave responses deemed improper by the propounding party; e.g., objections, or evasive or incomplete answers. (See *id.* at § 2030.300.) The moving party must also include reasons why further answers should be ordered: legal or factual arguments why the answers given were incomplete or nonresponsive, or the objections invalid. (See Cal. Rules of Court, rule 3.1345(c).)

However, where a timely motion to has been filed, “the burden is on the responding party to justify any objection or failure to fully answer the interrogatories.” (Weil & Brown, Cal. Prac. Guide: Civil Pro. Before Trial (The Rutter Group 2017) ¶ 8:1179.) “The ruling usually is based on consideration of the following factors: [¶] the relationship of the information sought to the issues framed in the pleadings; [¶] the likelihood that disclosure will be of practical benefit to the party seeking discovery; [¶] the burden or expense likely to be encountered by the responding party in furnishing the information sought.” (Columbia Broadcasting System, Inc. v. Superior Court (Rolfe) (1968) 263 Cal.App.2d 12, 19.)

IV. MEET AND CONFER

Before bringing a motion to compel further responses to any discovery request, the moving party must make efforts to meet and confer in good faith and submit a declaration showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion. (See Code Civ. Proc. §§ 2016.040, 2031.310(b)(2), 2030.300(b), 2033.290(b).) Failure to make such attempt constitutes misuse of the discovery process. (See Code Civ. Proc. § 2023.010(i) [amended eff. 1/1/26].)

“A reasonable and good-faith attempt at informal resolution...requires that counsel attempt to talk the matter over, compare their views, consult, and deliberate.” (Townsend v. Superior Court (1998) 61 Cal.App.4th 1431, 1439.) In evaluating whether

a meet and confer was reasonable and in good faith, “[a]n evaluation of whether, from the perspective of a reasonable person in the position of the discovering party, additional effort appeared likely to bear fruit, should also be considered.” (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1293-94.)

In opposition, Sherrard argues Klenshteyn failed to meet and confer and therefore this Motion should be denied. Sherrard cites this Court’s June 5, 2025, Order denying Klenshteyn’s Motion to Compel Further Deposition of Sherrard in which the Court found that Klenshteyn’s counsel failed to comply with the meet and confer requirement and “caution[ed] counsel it will likely deny future discovery motions and decline to address their merits should they fail to comply again.” (See Opp. at 5:14-20.)

Here, Klenshteyn’s counsel’s supporting declaration fails to state facts showing a “reasonable and good faith attempt, either in person, by telephone or by videoconference” to informally resolve the issues presented by this Motion. (See Declaration of Maral Zahedi filed June 4, 2026 (“Zahedi Decl.”), ¶¶ 1-10 .) Due to Klenshteyn’s failure to meet and confer and in addition to the Court’s reasoning below, this Motion will be denied.

V. ANALYSIS

A. Procedural Issues

A motion compelling further responses must be accompanied by a separate statement. (See Rules of Court, rule 3.1345.)

Klenshteyn fails to submit the requisite separate statement. The Court could deny the Motion for this reason alone. Nevertheless, because Klenshteyn attached Sherrard’s single objection responding to all interrogatories at issue in this Motion, the Court will address the merits below.

B. Klenshteyn’s Motion SROGs is Denied.

Klenshteyn moves to compel Sherrard’s further responses to his SROGs (Set Two) Nos. 1-55. Klenshteyn alternatively argues that at minimum, Sherrard be compelled to answer Nos. 1-35. (See Mot. at 5:17-2.) Klenshteyn attaches Sherrard’s blanket objection in response to SROGs (Set Two) which provides, “Responding party objects to Plaintiff’s Special Interrogatories, Set No. Two in its entirety on the grounds that the declaration is deficient, as there were 36 prior Special Interrogatories propounded in Set No. One to this responding party, pursuant to Code of Civil Procedure §2030.050.” (See Zahedi Decl., Ex. B.) Klenshteyn does not deny or confirm whether its SROGs (Set One) contained 36 SROGs but argues Sherrard’s refusal to answer Set Two in its entirety is inappropriate because she did not answer the first 35 interrogatories or move for a protective order under Code of Civil Procedure § 2030.050(b). (See Mot. at 3:8-13, 4:24-5:4; Zahedi Decl., ¶ 4.)

In opposition, Sherrard argues her objection was proper because first, Plaintiff’s SROGs (Set One) contained 36 SROGs and she answered the first 35 interrogatories. (See Opp. at 7:5-6.) Second, Sherrard argues Klenshteyn’s declaration served with his SROGs (Set Two) fails to comply with § 2030.050 because it omits the total number of SROGs Klenshteyn has propounded on Sherrard. (See *id.*, at 7:15-28.) Finally, Sherrard argues because the declaration served with Klenshteyn’s SROGs (Set Two) was deficient, Sherrard did not need to move for a protective order under § 2030.040. (See *id.*, at 9:6-16.)

Code of Civil Procedure § 2030.030 provides “Unless a declaration as described in Section 2030.050 has been made, a party need only respond to the first 35 specially prepared interrogatories served, if that party states an objection to the balance, under Section 2030.240, on the ground that the limit has been exceeded.” (Code Civ. Proc. § 2030.020(c).) Section 2030.050 requires a declaration containing substantially the following information including the previous total of special interrogatories propounded and the reasons why any factor specified in § 2030.040 is applicable to the instant lawsuit thereby warranting propounding a greater number of specially prepared interrogatories. (See Code Civ. Proc. §§ 2030.050, 2030.040.)[2]

Here, the Court finds Zahedi's declaration does not substantially comply with § 2030.050. First, Zahedi's declaration omits the total number of specially prepared interrogatories that Klenshteyn has previously propounded on Sherrard. (See Code Civ. Proc. § 2030.050, No. 4.) Second, the Court finds Zahedi does not adequately explain why the number of SROGs is warranted. Zahedi attests "This number of questions is warranted under California Code of Civil Procedure section 2030.040(a) because of the expediency of this method of discovery as well as the complexity of the 'potential and existing issues in this matter.'" (Zahedi Decl., ¶ 7.) Although Zahedi identifies the factors described in § 2030.040, Zahedi's conclusory declaration does not explain how these grounds apply to the instant lawsuit. For example, what are the complex issues existing in this matter that would make it more efficient to propound a greater number of specially prepared interrogatories? Accordingly, the Court finds Zahedi's supporting declaration is not substantially compliant with § 2030.050 and Sherrard's objection pursuant to § 2030.030 is thus proper. Sherrard did not need to challenge an inadequate declaration of necessity by a motion for a protective order under § 2030.090.

Based on Klenshteyn's failure to meet and confer prior to filing this Motion and the Court's finding that Sherrard's objection was appropriate considering the deficient supporting declaration of necessity, the Court DENIES Klenshteyn's Motion to Compel Further.

VI. DISCOVERY SANCTIONS

The court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further response to a demand, interrogatories, or requests for admission, unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (See Code Civ. Proc. §§ 2031.310(h), 2030.300(d), 2033.290(c).)

Plaintiff requests discovery sanctions in the amount of \$2,250.00. (See Zahedi Decl., ¶ 10.)

Sherrard argues discovery sanctions in the amount of \$875.00 should be imposed against Plaintiff's counsel for failure to meet and confer. This total comprises 3 hours to prepare the Opposition and 2 hours to prepare for and attend the hearing at an hourly rate of \$175.00. (See Declaration of Susan M. Haber filed June 15, 2026, ¶ 10.)

The Court denies Klenshteyn's request for discovery sanctions as his Motion was denied and the Notice fails to comply with § 2023.040.

The Court grants Sherrard's request for discovery sanctions in the amount of \$437.50 as Klenshteyn's Motion was denied and failure to make an attempt to meet and confer constitutes misuse of the discovery process, especially considering the Court's prior warning. (See Code Civ. Proc. § 2023.010(i) [amended eff. 1/1/26].) The Court finds 2 hours to prepare the Opposition and 0.5 hours to remotely attend the hearing at the requested hourly rate is reasonable.

Klenshteyn's counsel is ordered to pay Sherrard's counsel \$437.50 in discovery sanctions on or before July 31, 2026.

VII. CONCLUSION

Based on the foregoing, the Court DENIES Klenshteyn's Motion to Compel Further.

Klenshteyn's counsel is ordered to pay Sherrard's counsel \$437.50 on or before July 31, 2026.

IT IS SO ORDERED.

DATED: June 23, 2026

Hon. Michael R. Amerian

Judge, Superior Court

[1] The Court advanced the hearing on this Motion to hear it on the 15th day before trial. (See Code Civ. Proc. § 2024.020 [“any party shall be entitled...to have motions concerning discovery heard on or before the 15th day, before the date initially set for the trial of the action.”].)

[2] Section 2030.040 provides “Subject to the right of the responding party to seek a protective order under Section 2030.090, any party who attaches a supporting declaration as described in Section 2030.050 may propound a greater number of specially prepared interrogatories to another party if this greater number is warranted because of any of the following:

(1) The complexity or the quantity of the existing and potential issues in the particular case.

(2) The financial burden on a party entailed in conducting the discovery by oral deposition.

(3) The expedience of using this method of discovery to provide to the responding party the opportunity to conduct an inquiry, investigation, or search of files or records to supply the information sought.

(b) If the responding party seeks a protective order on the ground that the number of specially prepared interrogatories is unwarranted, the propounding party shall have the burden of justifying the number of these interrogatories.” (Code Civ. Proc. § 2030.040.)

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

JACQUELINE SHERRARD, an individual,

Plaintiff,

vs.

ALEXANDER KLENSHTEYN, an individual; L YFT, INC., a Delaware Corporation; and DOES 1 to 25,

Defendants.

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CASE NO.: 24VECV01413

Consolidated with: 24VECV02942

ORDER GRANTING DEFENDANT'S STARBUCKS CORPORATION MOTION FOR SUMMARY JUDGMENT

ALEXANDER KLENSHTEYN,

Plaintiff,

vs.

JACQUELINE SHERRARD; and DOES 1 to 25,

Defendants.

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I. BACKGROUND

Plaintiff Jacqueline Sherrard (“Sherrard”) filed a Complaint alleging motor vehicle tort against Alexander Klenshteyn, and Lyft, Inc. (“Lead Case”). This action was consolidated with the action filed by Plaintiff Alexander Klenshteyn (“Klenshteyn”). On August 5, 2025, Sherrard dismissed her Complaint.

Klenshteyn’s action alleges one cause of action for motor vehicle tort against Sherrard and Starbucks.

Starbucks now moves for summary judgment on Klenshteyn’s Complaint.

II. PROCEDURAL HISTORY

On March 28, 2024, Sherrard filed a Complaint alleging motor vehicle tort.

On June 20, 2024, Klenshteyn filed a Complaint alleging motor vehicle tort.

On September 11, 2024, Sherrard filed an Answer.

On July 2, 2025, Klenshteyn filed an Amendment to Complaint to designate Starbucks Corporation ("Starbucks") as Doe 1.

On August 5, 2025, Sherrard dismissed her Complaint.

On September 5, 2025, Starbucks filed an Answer.

On September 22, 2025, the Court granted the parties' stipulation to continue trial and related dates.

On March 17, 2026, Starbucks filed the instant Motion.

On May 4, 2026, the Court denied Starbucks' Ex Parte Application to (1) Advance Specially Set the Hearing On Defendant's Motion for Summary Judgment Or, Alternatively, (2) to Continue Trial to Allow for the Motion to be Heard.

On May 20, 2026, the Court denied Starbucks' Ex Parte Application to (1) Continue Trial to Allow for the Defendant's Motion For Summary Judgment to be Heard or (2) Specially Set the Hearing on Defendant's Motion for Summary Judgment to be Heard Less than 30 Days Before Trial.

On May 28, 2026, Klenshteyn filed an Opposition.

On June 5, 2026, Starbucks filed a Reply.

Trial is scheduled for July 8, 2026.

III. LEGAL STANDARD

The function of a motion for summary judgment or summary adjudication is to allow a determination as to whether an opposing party cannot show evidentiary support for a pleading or claim and to enable an order of summary dismissal without the need for trial. (See *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843.) In analyzing such motions, courts must apply a three-step analysis: "(1) identify the issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue." (*Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294.) Thus, summary judgment is granted when, after the Court's consideration of the evidence set forth in the papers and all reasonable inferences accordingly, no triable issues of fact exist, and the moving party is entitled to judgment as a matter of law. (See Code Civ. Proc. § 437c(c);[1] *Villa v. McFarren* (1995) 35 Cal.App.4th 733, 741.)

“On a motion for summary judgment, the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) As to each claim as framed by the complaint, a defendant moving for summary judgment must satisfy the initial burden of proof by presenting facts to negate or establish an essential element. (See Scalf v. D.B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1520.) Courts “liberally construe the evidence in support of the party opposing summary judgment and resolve doubts concerning the evidence in favor of that party.” (Dore v. Arnold Worldwide, Inc. (2006) 39 Cal.4th 384, 389.) A motion for summary judgment must be denied where the moving party’s evidence does not prove all material facts, even in the absence of any opposition. (See Leyva v. Superior Court (1985) 164 Cal.App.3d 462, 475; Salesguevara v. Wyeth Labs., Inc. (1990) 222 Cal.App.3d 379, 384.)

Once the moving party has met its burden, the burden shifts to the opposing party to show via specific facts that a triable issue of material fact exists to a cause of action or a defense thereto. (See Code Civ. Proc. § 437c(o)(2).)

IV. ANALYSIS

A. Procedural Issues

1. Notice Requirements of Motion

A motion for summary judgment cannot be heard later than 30 days before the date set for trial unless the court orders otherwise for good cause shown. (See Code Civil Proc. § 437c(a); see Beroiz v. Wahl (2000) 84 Cal.App.4th 485, 493, fn. 4 [time limit not jurisdictional because court has power to permit later hearing]; Robinson v. Woods (2008) 168 Cal.App.4th 1258, 1268 [court must make separate order finding “good cause” before motion filed].)

Klenshteyn argues the Motion should be denied because the Court already determined in its May 4, 2026, Order that the Motion could not timely be heard before trial. (See Opp. at 5:10-19.)

Starbucks argues the Court erroneously concluded the Motion was not served in sufficient time to be heard within 30 days of trial. (See Reply at 4:18-22.) Starbucks argues because it timely filed its Motion it has a statutory right under § 437c to have its Motion heard on the merits. (See id., at 5:4-8.) In support of this argument, Starbucks relies on Cole v. Superior Court (2022) 87 Cal.App.5th 84, 87-89 which held that “local rules and practices may not be applied so as to prevent the filing and hearing of such a motion.” (See id.)

Having heard counsel’s arguments and taking this matter under submission, the Court now finds Starbucks’ Motion was timely served under § 437c(a)(2). Because the Court acknowledges that calendaring issues should not prevent a timely filed motion from being heard, the Court will work with June 8, 2026, as the noticed hearing date for its calculation here. (See Code of Civ. Proc. § 437c(a)(3).) Subtracting 81 days from June 8, 2026, leads us to March 19, 2026. Then, subtracting 2 court days to account for service by email, leads us to March 17, 2026. (See Code Civ. Proc. § 437c(a)(2) [motions served electronically must be served at least 113 days before trial]; Cole, 87 Cal.App.5th at 87-88 [applying Code of Civil Procedure § 1010.6’s 2-day extension to CCP § 437c].) Thus, Starbucks complied with the notice requirements under § 437c(a)(2) because it served and filed its Motion on March 17, 2026.

2. Reply Separate Statement and Untimely Opposition

The summary judgment statute bars a reply separate statement. (See Code Civ. Proc. § 437c(b)(4).) Accordingly, the Court will not consider Starbucks’ reply separate statement.

Additionally, the Court exercises its discretion to consider Klenshteyn’s Opposition that is untimely by one day. (See Code Civ. Proc. § 437c(b)(2).)

B. Moving Defendants' Undisputed Material Facts

This litigation arises out of an August 28, 2023, accident involving a vehicle owned and driven by Sherrard and a vehicle driven by Klenshteyn that occurred in or near the intersection of Ventura Boulevard and Nestle Avenue in Los Angeles. (See Def.'s Sep. Stmt. Undisputed Material Facts ("UMF"), No. 1.) Klenshteyn's form Complaint named Sherrard and Does as defendants and asserted only one cause of action for motor vehicle tort, based on allegations that Sherrard negligently operated her vehicle while acting as an agent for those Doe defendants. (See *id.*, No. 2.) Klenshteyn designated Starbucks as Doe 1. (See *id.*, No. 3.) On the date of loss, Ms. Sherrard was employed as a Store Manager at Starbucks' Fashion Square Mall location in Sherman Oaks, California. (See *id.*, No. 4.) Ms. Sherrard was a salaried employee. (See *id.*, No. 5.)

Ms. Sherrard was working an 8:30 a.m.-5:00 p.m. shift that day, and between 4:30-4:45 p.m. on August 28, 2023, she left her Starbucks location to run a work related errand of picking up supplies at an office supply store off of Ventura Boulevard and Noble Avenue. (See *id.*, No. 6.) Ms. Sherrard was driving her vehicle with friend and passenger, Ben Goosen, and after she had picked up the supplies, she exited the store parking lot at approximately 5:03 p.m. (See *id.*, No. 7.) Ms. Sherrard and Mr. Goosen intended to go from the office supply outlet to have dinner at a restaurant called Buevette in Sherman Oaks. (See *id.*, No. 8.) Ms. Sherrard checked her phone when she finished picking up the supplies and saw that it was 5:03 p.m. (See *id.*, No. 9.)

After Ms. Sherrard exited the office supply store, she turned left and proceeded to the light at Ventura and Nestle Avenue, where the subject accident occurred. (See *id.*, No. 10.) The normal Starbucks custom and practice would have been for Ms. Sherrard to enter her 5:03 clock-out time when she returned to her Starbucks location the next morning of August 29, 2023. (See *id.*, No. 11.) Because Ms. Sherrard was injured in the accident, however, she did not return to work for approximately two months. (See *id.*, No. 12.) Because Ms. Sherrard was unable to come into work on the morning of August 29, 2023, a co-worker, Store Manager Aaron Spatz, had to enter her punch-out time for her. (See *id.*, No. 13.) As reflected in the Excel spreadsheet that Mr. Spatz generated from Starbucks' digital payroll records regarding Ms. Sherrard's hours on August 28, 2023; because Mr. Spatz did not know the exact time that Ms. Sherrard had finished her errand on the evening before, he just arbitrarily chose 5:30 p.m. as her punch-out time. (See *id.*, No. 14.)

Because Ms. Sherrard was a salaried employee, the discrepancy between the actual 5:03 p.m. time that she actually finished her work for Starbucks on August 28, 2023, and the 5:30 p.m. time reflected in Starbucks' records did not affect her compensation for her work in any way. (See *id.*, No. 15.)

C. Plaintiff's Additional Material Facts

At the time of the accident, Starbucks' digital payroll records reflect that Ms. Sherrard was clocked in through 5:30 p.m. on August 28, 2023. (See Plf.'s Additional Material Facts ("AMF"), No. 1.) The accident at the intersection of Ventura Boulevard and Nestle Avenue occurred at the next traffic signal east of the office supply store parking lot at Ventura Boulevard and Noble Avenue, within minutes of Ms. Sherrard exiting the errand site, before she had traveled any meaningful distance from that location and before she reached any personal destination. (See AMF, No. 2.) Ms. Sherrard never entered any punch-out time in Starbucks' payroll system for August 28, 2023. The only punch-out time in Starbucks' official records for that date is 5:30 p.m., which was entered by Aaron Spatz the following morning. (See *id.*, No. 3.)

D. Moving Defendant's Motion for Summary Judgment is Granted.

Klenshteyn's Complaint pleads one cause of action for motor vehicle tort based on allegations that Sherrard negligently operated her vehicle while acting as an agent for Starbucks (formerly Doe 1). (See Compl., at 4.)

1. Motor Vehicle Negligence

To state a claim for negligence, Plaintiff must allege the elements of (1) "the existence of a legal duty of care," (2) "breach of that duty," and (3) "proximate cause resulting in an injury." (*McIntyre v. Colonies-Pacific, LLC* (2014) 228 Cal.App.4th 664, 671.) Motor vehicle operators are subject to the general duty of care and thus can be liable for injuries caused by the failure to exercise reasonable care in operation of the vehicle under the circumstances. (See Civ. Code § 1714(a); *Cabral v. Ralphs Grocery Co.* (2011) 51 Cal.4th 764, 771.)

As a general rule, an employer is not liable for torts committed by an employee acting outside the scope of employment. (See *Ducey v. Argo Sales Co.* (1979) 25 Cal.3d 707, 721.) "Under the doctrine of respondeat superior, an employer may be held vicariously liable for torts committed by an employee within the scope of employment." (*Mary M. v. City of Los Angeles* (1991) 54 Cal.3d 202, 208.)

In the case of vehicle accidents of employees whose jobs do not include driving, the going and coming rule is particularly applicable in determining whether the employee was acting within the scope of employment. The going and coming rule provides an employee going to or coming home from work is "ordinarily considered outside the scope of employment so that the employer is not liable for his torts." (*Hinman v. Westinghouse Electric Co.* (1970) 2 Cal.3d 956, 959; *Harris v. Oro-Dam Constructors* (1969) 269 Cal.App.2d 911, 917.) "The 'going and coming' rule is sometimes ascribed to the theory that the employment relationship is 'suspended' from the time the employee leaves until he returns [citation], or that in commuting he is not rendering service to his employer [citation]. Nevertheless, there are exceptions to the rule." (*Hinman*, 2 Cal.3d at 961.)

Under the special errand rule, even if an employee is driving from home to work or from work to home, the employee is within the scope of his employment (and the employer is therefore liable) if the employee is "performing an errand either as part of his regular duties or at the specific order or request of his employer." (*Morales-Simental v. Genentech, Inc.* (2017) 16 Cal.App.5th 445, 452.) An employee completing a special errand "is considered to be in the scope of his employment from the time that he starts on the errand until he has returned or until he deviates therefrom for personal reasons." (*Sumrall v. Modern Alloys, Inc.* (2017) 10 Cal.App.5th 961, 968.)

"In determining whether an employee has completely abandoned pursuit of a business errand for pursuit of a personal objective, a variety of relevant circumstances should be considered and weighed. Such factors may include the intent of the employee, the nature, time and place of the employee's conduct, the work the employee was hired to do, the incidental acts the employer should reasonably have expected the employee to do, the amount of freedom allowed the employee in performing his duties, and the amount of time consumed in the personal activity. [Citations.] While the question of whether an employee has departed from his special errand is normally one of fact for the jury, where the evidence clearly shows a complete abandonment, the court may make the determination that the employee is outside the scope of his employment as a matter of law." (*Felix v. Asai* (1987) 192 Cal.App.3d 926, 932-33.)

Starbucks moves for summary judgment on grounds that liability for the subject motor vehicle accident cannot be imposed on Starbucks, because its employee, Sherrard, had completed and completely abandoned her special errand for Starbucks and was pursuing a purely personal objective of driving to a restaurant to have dinner with a friend when that accident occurred. (See Mot. at 12:6-11, citing *Felix*, 192 Cal.App.3d 926, 933.) Starbucks submits Sherrard's deposition testimony in which she testifies her scheduled shift on the day of the accident was from 8:30 to 5:00 and that she "ended the day by running an errand for work." (See UMF No. 6.) Sherrard testified her errand consisted of grabbing office supplies from Staples and she arrived to Staples between 4:30 and 4:45 p.m. (See id.) Sherrard testified "[w]hen I left Staples is when I clocked out." (See id., Nos. 7, 9.) Sherrard testified "I looked at my phone at the time," and she noted that her shift ended at 5:03 p.m. (See id.) Sherrard testified her friend Ben Goosen was her passenger in the vehicle and that "[w]e were coming from the Staples...and we were going to dinner at Buvette's in Sherman Oaks." (See id., Nos. 7-8.)

Starbucks also submits evidence in the form of Sherrard's declaration in which she attests "As a Store Manager, I am thoroughly familiar with Starbucks' operations, business practices, policies, and procedures, including those in place in August, 2023 regarding employees clocking into and out of work." (See id., No. 11.) Sherrard attests "In August, 2023, there was a normal Starbucks custom and practice for a Store Manager like me who was running a work errand later in their shift, so that they would complete the errand as their shift was ending and not return to work that day. In that situation, I was to note the time that I completed work and then enter that time as my punch out time in Starbucks' digital system when I returned to work the next day." (See id.)

Starbucks further submits the declaration of Aaron Spatz, who attests “Part of my job duties as Store Manager also include handling payroll and submitting employee’s timecards to payroll.... Because Jacqueline Sherrard was unable to come into work on the morning of August 29, 2023, I had to enter her punch-out time for her....As reflected in the Excel spreadsheet that was generated from Starbucks’ digital payroll records regarding Ms. Sherrard’s hours on August 28, 2023, because I did not know the exact time that she had finished her errand on the evening before, I just arbitrarily chose 5:30 p.m. as her punch-out time.” (See *id.*, Nos. 13-14.)

The Court finds Starbucks’s evidence makes a *prima facie* showing negating that Sherrard was still acting in the course and scope of employment the moment she left Staples. The burden shifts to Klenshteyn to raise a triable issue.

Klenshteyn argues because Starbucks’ payroll records and Aaron Spatz’s declaration testimony reflect that Sherrard’s punch-out time was 5:30 p.m., thereby contradicting Sherrard’s deposition testimony that she ended work at 5:03 p.m., a jury must decide whether Sherrard was in the course and scope of employment when the accident occurred. (See *Opp.* at 3:23-4:5.) As evidence, Klenshteyn relies on the evidence submitted by Starbucks.[2] Klenshteyn also argues Sherrard’s testimony that she ended work at 5:03 p.m. must be denied because she was the sole witness to this fact. (See *id.* at 8:7-16, citing Code Civ. Proc. § 437c(e).) Klenshteyn also argues the facts here are distinct from *Felix* and a triable issue exists because Sherrard testified the subject accident occurred in the vicinity of the Staples, before she reached any personal destination. (See *AMF*, No. 2; *Opp.* at 10:14-11:4.)

The Court finds Sherrard’s leaving Staples and driving to a restaurant with her friend in the car constituted a complete abandonment of her special errand for Starbucks. On this basis, the Court finds Starbucks is entitled to summary judgment as a matter of law.

As an initial matter, Klenshteyn’s reliance on § 437c(e) is misplaced. “[S]ummary judgment may be denied in the discretion of the court if the only proof of a material fact offered in support of the summary judgment is an affidavit or declaration made by an individual who was the sole witness to that fact...” (Code Civ. Proc. §437c(e) [emphasis added].) Moreover, the opposing party must show that some “material fact” is in controversy. It is not enough simply to raise some issue as to the credibility of the moving party’s declarations. Summary judgment may “not be denied on grounds of credibility or for want of cross-examination of witnesses furnishing affidavits or declarations in support of the summary judgment.” (See *id.*; see also *Eng v. Opperman* (2025) 117 Cal.App.5th 354, 376 [citing text].) Here, Sherrard’s testimony is asserted in her deposition and declaration, not solely by declaration. Additionally, Klenshteyn does not submit evidence controverting Sherrard’s testimony that she left Staples at 5:03 p.m. Accordingly, the Court may not deny the Motion on this basis.

In *Felix*, the Court of Appeal answered in the affirmative whether an employee’s “clear and undisputed intent to go directly to [a second location]...from the post office constituted a complete abandonment of his employer’s business.” (*Felix v. Asai* (1987) 192 Cal.App.3d 926, 933.) In *Felix*, an employee was sent to the post office to deliver mail on his way home from work. (See *id.*) The *Felix* employee was intending to head to his parent’s house directly after work, without stopping at his home. (See *id.*) *Felix* held, “[s]o long as [employee] intended to proceed directly to [a second location], bypassing his own apartment...we can see no logical or public policy reason for a different result where the location of the [second location] takes him in a direction leading back toward the employer’s place of business, or toward [employee’s] own apartment, for that matter. In either case, once he has delivered the mail and leaves the post office intending to drive directly to [a second location], he has completed his employer’s business and is pursuing a purely personal objective... and was not in the scope of his employment at the time of the accident.” (*Id.*, 192 Cal.App.3d at 933-34.)

Like the *Felix* Court, the Court finds the evidence here clearly shows a complete abandonment of her job duties such that Sherrard was not acting in the course and scope of employment at the time of the subject incident. The evidence shows about half an hour before Sherrard’s normal quitting time of 5:00 p.m., she arrived at Staples to pick up supplies for Starbucks. The evidence shows Sherrard determined her clock out time to be 5:03 p.m. when she left Staples. The evidence shows Sherrard and her passenger were driving to a restaurant directly from Staples. Sherrard was not driving to her home. The evidence also shows Starbucks’ payroll record indicates Sherrard’s punch-out time on the date of the subject incident as 5:30 p.m. because Sherrard’s colleague arbitrarily selected this punch out time the following morning, since he did not know the time Sherrard completed her errand to Staples the day before.

Based on this undisputed evidence, the Court finds a trier of fact cannot draw conflicting conclusion as to what time Sherrard left Staples for purposes of her clock out time, that the accident occurred after Sherrard left Staples, and that Sherrard and her passenger were heading directly to a restaurant from Staples when the accident occurred.

The Court is unpersuaded by Klenshteyn's argument the subject accident occurred in the vicinity of the Staples distinguishes this case from Felix. Whether the subject accident occurred near the Staples does not change Sherrard's clear and undisputed intent to head to a restaurant with her passenger, thereby constituting an abandonment of her special errand – and thus her job duties. Felix does not contemplate a court must further determine at what distance after leaving the special errand location appropriately constitutes an abandonment of the business errand for pursuit of a personal objective. (Id., 192 Cal.App.3d at 933-34.) Felix simply held the employee in that action abandoned his employer's business "after leaving the post office bound for his parents' home." (Id. [emphasis added].) The Court thus finds it appropriate to conclude as a matter of law Sherrard abandoned her special errand after leaving Staples at 5:03 p.m. and was bound for the restaurant. Accordingly, the Court finds once Sherrard picked up the supplies for Starbucks and left Staples at 5:03 p.m., she abandoned her special errand for Starbucks, was pursuing a purely personal objective, and was not in the course and scope of her employment at the time of the accident.

On this basis, the Court GRANTS Starbucks' Motion for Summary Judgment.[3]

E. Klenshteyn's Request for Continuance of MSJ is Denied.

Code of Civil Procedure § 437c(h) provides "If it appears from the affidavits submitted in opposition to a motion for summary judgment or summary adjudication, or both, that facts essential to justify opposition may exist but cannot, for reasons stated, be presented, the court shall deny the motion, order a continuance to permit affidavits to be obtained or discovery to be had, or make any other order as may be just." "To make the requisite good faith showing, an opposing party's declaration must show (1) the facts to be obtained are essential to opposing the motion, (2) there is reason to believe such facts may exist, and (3) the reasons why additional time is needed to obtain these facts." (Chavez v. 24 Hour Fitness USA, Inc. (2015) 238 Cal.App.4th 632, 643.)

"Second, in deciding whether to continue a summary judgment to permit additional discovery courts consider various factors, including (1) how long the case has been pending; (2) how long the requesting party had to oppose the motion; (3) whether the continuance motion could have been made earlier; (4) the proximity of the trial date or the 30-day discovery cutoff before trial; (5) any prior continuances for the same reason; and (6) the question whether the evidence sought is truly essential to the motion." (Id. at 644 [citing Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 2015) ¶ 10:208.1, pp. 10-85 to 10-86].)

Klenshteyn's counsel attests she noticed the deposition of Starbucks' PMK which she expects will provide facts concerning the accuracy of Starbucks' payroll and timekeeping records and the factual basis for Starbucks' position that Sherrard's work ended at approximately 5:03 p.m. (See Zahedi Decl., ¶¶ 4-6.) Zahedi attests despite exercising diligence in obtaining this discovery, she has been unable to conduct this deposition because Starbucks objected to the PMK deposition notice and has not produced a witness to testify regarding these subjects. (See id., ¶ 7.)

Starbucks argues Klenshteyn's counsel's argument she has been deprived of discovery fails because she noticed Starbucks' PMK deposition for June 1, 2026, five days after the deadline for his opposition to this Motion. (See Reply at 6:1-5; Declaration of Vanessa K. Herzog filed June 5, 2026, ¶¶ 5-19 [Klenshteyn has noticed March 18, 2026, May 8, 2026, and June 1, 2026].) Starbucks further contends Klenshteyn's counsel has not been diligent as she noticed PMK depositions on April 22, 2026, a month after this Motion was filed. (See id., at 8:1-6.) Starbucks contends Klenshteyn then served an Amended Notice of Deposition for June 1, 2026, on 18 topics, only two of which were topics identified in the original prior two deposition notices and topics which the individual whom Starbucks was going to produce based on the April 22, 2026, notice didn't have the knowledge to testify. (See id., at 7:13-19.)

The Court finds a continuance is not warranted here. Here, the issue at summary judgment is whether Sherrard remained in the course and scope of employment when the subject accident occurred. There are four relevant inquiries to this issue: (1)

Did the subject accident occur on Sherrard's way to or from Staples; (2) Where was Sherrard heading after leaving Staples; (3) What time did Sherrard leave Staples; and (4) Why does the payroll record show Sherrard's clock out time as 5:30 p.m.? It is undisputed the subject accident occurred after Sherrard left Staples, that Sherrard intended to go to a restaurant for dinner as she drove away from Staples, and that Sherrard noted it was 5:03 p.m. when she left Staples. The Court does not find the evidence Klenshteyn seeks from Starbucks is truly essential to the Motion, as Sherrard and Spatz are the ones with unique knowledge on these inquiries, not any potential PMK from Starbucks. Deposing Starbucks' PMK regarding "the creation, maintenance, interpretation, and accuracy of Starbucks' payroll and timekeeping records" is simply not essential to justify opposition as Sherrard's clock out time as reflected on payroll records is peripheral to the evidence provided by Sherrard and Spatz.

Additionally, this case has been pending for almost two years, yet Klenshteyn did not notice Starbucks' PMK for deposition until this year and Klenshteyn has known about Sherrard's connection to Starbucks for most of that time. Further, trial is scheduled for July 8, 2026 and the discovery cutoff has passed. And most importantly, Starbucks' PMK deposition is not plainly essential to the Klenshteyn's opposition. Based on these factors, the Court denies Klenshteyn's request for a continuance of this hearing.

V. CONCLUSION

Based on the foregoing, the Court GRANTS Starbucks' Motion for Summary Judgment.

IT IS SO ORDERED.

DATED: June 23, 2026

Hon. Michael R. Amerian

Judge, Superior Court

[1] All statutory references are to California codes unless stated otherwise.

[2] Klenshteyn additionally asserts Mr. Spatz' deposition testimony confirms Ms. Sherrard was clocked in until 5:30 p.m. on August 28, 2023, and that "the transcript has been ordered and can be submitted to the Court upon receipt." (See Opp. at 7:27-8:2.) However, Klenshteyn cannot rely on evidence that has not been submitted to this Court to support its Opposition to Starbucks' Motion. The party against whom the motion is directed must produce admissible evidence showing some triable issue of material fact. (Code Civ. Proc. § 437c(b)(3).)

[3] Starbucks additionally argues no act of Starbucks contributed to the accident but acknowledges that Klenshteyn does not assert any theory of liability against Starbucks other than respondeat superior. (See Mot. at 13:6-10.) However, the pleadings serve as the "outer measure of materiality" in a summary judgment motion, and the motion may not be granted or denied on issues not raised by the pleadings. (See *Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1258 [emphasis added]; *Hutton v. Fidelity Nat'l Title Co.* (2013) 213 Cal.App.4th 486, 493 [summary judgment defendant need only "negate plaintiff's theories of liability as alleged in the complaint; that is, a moving party need not refute liability on some theoretical possibility not included in the pleadings" (emphasis in original)].) Accordingly, the Court will not consider the causation argument.